



## **DECISION**

Complaint No. :  
Name and address of the complainant : POS/886/2024/HYD/92  
Name of the Agency Complained against : Syed Nadeem Rizwan,  
Rtd. Chief Town Planner (HDA) R/o. House No.14/A, H.D.A. Society, Phase-I, Kohsar Latifabad Hyderabad.  
Name & Designation of Investigating Officer : Director General, H.D.A, Hyderabad.  
Vetted by : Syed Muhammad Sajjad Hyder,  
Regional Director, Regional Office, Hyderabad.  
Subject : Muhammad Naseer Jamali, Advisor-N

**ALLEGED INORDINATE DELAY IN  
PAYMENT OF PENSION AND SERVICE  
DUES TO THE COMPLAINANT WHO  
RETIRED FROM SERVICE ON 10.09.2021.**

### **COMPLAINT**

Syed Nadeem Rizwan filed a complaint dated 18.01.2024 wherein he stated that he retired from had service as a Chief Town Planner (BPS-20) on 10.09.2021. He alleged that the Hyderabad Development Authority (HDA) has failed to pay his service dues, amounting to Rs. 3,709,838/- and even the monthly pension is not being paid to him on regular basis. Aggrieved by that, he solicited intervention of this Institution.

### **PROCEEDINGS**

2. The case was admitted for investigation under Section 10(3) of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date) after receiving affidavit on Form-A and by condoning the delay.
3. This office issued a notice vide letter dated 07.03.2024 to the Secretary, Hyderabad Development Authority and Deputy Director, Audit & Accounts, HDA for report. In response, the Deputy Director, Audit & Accounts, HDA informed vide letter dated 25.03.2024 that the partial payment of service dues have been made to the complainant except commutation. The complainant was working in the Building Control Department under the HDA.
4. The report of the agency was sent to the complainant for rejoinder vide letter dated 18.04.2024, who in response informed vide letter dated 24.04.2024 that the Building Control department was working under the administrative control of HDA. He requested for early payment of commutation, amounting to Rs. 3,709,830/- by the agency.

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5. The case was heard on various dates, attended by the representative of the agency and the complainant who informed that he and other retired employees had filed a CP No: D-661 of 2024 before Sindh High Court wherein the Honorable Court has passed orders dated 01.10.2024 as under:

*“Upon undertaking of learned counsel for the respondents/HDA, this petition stands disposed of with direction that all pensionary benefits/arrears of the petitioners shall be paid and regular/monthly pension shall be started within two (02) months hereof. In case of failure, the present Director General, HDA, Pervaiz Hussain Baloch, shall face the consequences of contempt proceedings”.*

#### FINDINGS

6. The matter of the complainant has been adjudicated by honourable High Court of Sindh. No further action is required by this office.

#### DECISION

7. In view of the above and in exercise of powers vested in me under section 11 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended upto date) the complaint is disposed of as adjudicated by the court.

8. This also disposes of complaint No. POS/885/2024/HYD/94 filed by Mr. Kafeel Ahmed, involving identical grievance on the same subject against the same agency.

*Given under my hand and seal of the office*

**Sd /-**

(MUHAMMAD SOHAIL RAJPUT)

Sitara-e-Imtiaz, PAS

Ombudsman Sindh

Karachi, dated 25<sup>th</sup> May, 2026

